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File No.: EXP202306267

RESOLUTION FOR FILING OF PROCEEDINGS

From the proceedings carried out by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: On 12/03/2021, a document was received by this Agency presented by the CITY COUNCIL OF BARCELONA, informing that the actions of REBY RIDES, S.L. with NIF B67301473 (hereinafter, REBY), may lead to a breach of the provisions of personal data protection regulations.

The reasons are as follows:

"[...]

I.- BACKGROUND.

[...]

Among others, a total of 1,392 temporary licenses for special common use of public domain for the parking of mopeds and motorcycles for shared use in an economic exploitation regime were awarded to the municipality of Barcelona among the four operators (Tucycle Bikesharing, SL, Avant Fullstep, SL, Eco-logica Turismo Sostenible, SL, Oiz Ridesharing, SL).

[...]

7. The four companies Tucycle Bikesharing, SL, Avant Fullstep, SL, Eco-logica Turismo Sostenible, SL, Oiz Ridesharing, SL, also participated in the procedure for granting temporary licenses precariously and consequently submitted responsible declarations in which they confirmed their status as independent companies, and committed and accepted to comply with the conditions and obligations of the call. Through this procedure, a total of 854 temporary licenses for special common use of public domain were awarded to the four operators. Thus, the four operators are the recipients of a total of 2,246 temporary licenses for special common use of public domain for the parking of mopeds and motorcycles for shared use in an economic exploitation regime in the municipality of Barcelona.

[...]

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9. By virtue of the above, to operate in public space, each company has a mobile application for users to register and make use of the bicycle and motorcycle rental service, which are parked in the public space of Barcelona. In these mobile applications, breaches have been detected by the four companies, as when a person registers in one of the applications of the four companies, the application recognizes the user and shares the data among the four companies, without the user having registered in the other applications of the companies or having consented (this point is detailed further below). Additionally, we must add another company, REBY RIDES S.L, which is not a licensee, but which in the inspection reports dated December 1, 2020, and the report from the Mobility and Infrastructure Management dated December 29, 2020, which is mentioned later, demonstrates that apparently, it also facilitates the rental of motorcycles from the four previous companies in its mobile application, and consequently facilitates the data of users registered in the previous applications, without prior consent from the users.

10. On August 27, 2020, and September 14, 2020, YEGO URBAN MOBILITY (final licensee) sent emails to the corporation in which it warned that it had detected certain practices carried out by the four final licensees that could constitute a breach of data protection regulations in relation to the regulatory decree and the call decree.

11. For this reason, the City Council of Barcelona carried out its own verifications on August 19, 2020, and an inspection report was issued in which the detected breaches were recorded (...).

12. Likewise, on October 6, 2020, this Directorate received a letter from the company CITYSCOOT

ESPAÑA, S.L., licensee, in which it stated that certain practices carried out by the four operators and final licensees (Tucycle Bikesharing, SL, Avant Fullstep, SL, Eco-logica Turismo Sostenible, SL, Oiz Ridesharing, SL) could constitute a breach of competition regulations as well as data protection regulations (...).

13. In light of the above, the Mobility and Infrastructure Management again carried out its verifications, and on October 26, 2020, municipal officials personally and directly verified the aforementioned actions carried out by Tucycle Bikesharing, SL, Avant Fullstep, SL, Eco-logica Turismo Sostenible, SL, Oiz Ridesharing, SL, and consequently, four inspection reports were issued, which are attached as ANNEXES 4, 5, 6, and 7 respectively, in which certain actions that could constitute a breach of data protection regulations are highlighted and detailed below. An inspection report issued on December 1, 2020, is attached as ANNEX 8, which demonstrates that apparently, REBY RIDES, a company that does not hold licenses nor has participated in the procedure, also facilitates the rental of motorcycles from the four previous companies in its mobile application, and consequently facilitates the data of users registered in the previous applications.

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of the registered users in the previous applications, without prior consent from the users.

[...]

IV.- OBJECT OF THE COMPLAINT.

[...]

In the inspections carried out on 26/10/2020, it was verified that when a user registers in the Iberscot application, they are automatically registered in the Oiz, Tucycle, and Avant applications, as indicated in the same application, since the necessary documentation to register the new user is not required again, and with the following message that appears in the screenshots of the Minutes: "You are already registered! We have detected that you have already registered on another collaborating platform. We will use the data you have added to expedite the process." (...)

In the inspections carried out on 26/10/2020, it was verified that by entering €10 in the Avant application, which is added to the previous €0.22 in the account, and taking a trip with this same application, the balance is reduced by €0.66, going from €10.22 to €9.56. (...)

It should be noted that the balance, once the €10 is entered in the Avant application wallet, in the case of the OIZ company wallet, an additional €1 gift is added to the account as indicated by the promotion of the application itself (highlighted in green in the screenshot). At the same time, it is verified that having made only one trip with the Avant company with a charge of €0.66, the accounts of the other three companies are also reduced by €0.66 (see Annexes 4, 5, 6, and 7). It is confirmed that with the other three companies, Oiz, Tucycles, and Iberscot, no trips have been made. Nevertheless, the wallet balance has also decreased (...).

3. In the privacy policy of the companies, users are informed that their personal data is shared with entities of the same group (...).

Likewise, in relation to the Inspection Report dated December 1, 2020, concerning the external company REBY RIDES, S.L., it is verified that:

The companies Avant, Oiz, Tucycle, and Iberscot share the databases of the records and users with a fifth company: REBY RIDES SL (an external company that has not been awarded licenses).

[...]"

Along with the complaint, the following documentation is provided:

- Copy of the Mayor's Decree dated 04/07/2019 approving the regulation on the number and conditions of temporary licenses for special common use of public domain for the parking of bicycles, mopeds, and motorcycles for shared use under economic exploitation in the municipality of Barcelona (BOPB 08/08/2019).

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- Copy of the Mayor's Decree dated 10/10/2019 approving the call for the procedure for granting temporary licenses for special common use of public domain for the parking of bicycles, mopeds, and motorcycles for shared use under economic exploitation in the municipality of Barcelona (BOPB 11/10/2019).
- Copy of the Inspection Report issued by the CITY COUNCIL that records the verifications carried out on 19 and 26/08/2020, 26/10/2020, and 01 and 11/12/2020, concerning the following entities: Tucycle Bikesharing, S.L., Avant Fullstep, S.L., Eco-logica Turismo Sostenible, S.L., Oiz Ridesharing, S.L., and Reby Rides, S.L.
- Copy of the Responsible Declarations signed by the following entities: Tucycle Bikesharing, S.L., Avant Fullstep, S.L., Eco-logica Turismo Sostenible, S.L., Oiz Ridesharing, S.L., in which they expressly declare that they comply with the conditions and obligations of the call.
- Copy of the Responsible Declarations of acceptance of the conditions to participate in the procedure for granting temporary licenses for special common use of public domain for the parking of bicycles, mopeds, and motorcycles for shared use under economic exploitation in Barcelona, signed by Tucycle Bikesharing, S.L., Avant Fullstep, S.L., Eco-logica Turismo Sostenible, S.L., Oiz Ridesharing, S.L.
- Copy of the technical report, dated 29/01/2021, issued by the Mobility and Infrastructure Management, in which it requests to inform the competent authorities in data protection matters of the analysis included in its report and in the minutes, so that the corresponding investigations can be initiated, and in case a violation of the regulations by Avant Fullstep SL (Avant), Oiz Ridesharing SL (Oiz), Tucycle Bikesharing SL (Tucycle), and Eco-logica Turismo Sostenible SL (Iberscot) is confirmed, it requests the initiation of the corresponding revocation of licenses and the adoption of the corresponding sanctions or necessary measures.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), on 19/04/2021, this complaint was forwarded to REBY, so that it could analyze it and inform this Agency within one month of the actions taken to comply with the requirements established in the data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was recorded on 20/04/2021 as noted in the acknowledgment of receipt in the file.

On 02/06/2021, a response letter was received in this Agency stating:

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"[...]"

I. Introduction. Explanation of how Reby operates.

1. Prior to presenting the decision and/or measures adopted by Reby, in its capacity as the data controller of the personal data of users of its services and as the data processor of the personal data of users of the mobility companies ("Operators") mentioned in the Request, it is relevant to make certain clarifications.

2. Reby is a mobility company that independently manages its vehicles, users, routes, and internal processes as the data controller. Additionally, it has developed an aggregation service, contracted by different operators in the same territory, in which Reby provides certain services solely and exclusively as the data processor. (...)

3. The aggregation service model developed by Reby operates similarly to other similar platforms that operate in Spain. By collaborating with other agents in the sector, it provides users, through its platform, with more mobility options to allow citizens to move freely around the city in a quick and easy manner, always ensuring the integrity and confidentiality of the personal information processed as a

result of this service.

4. The aggregation platform offers the user technical information about the location, battery, and other aspects of the vehicles made available to them. Therefore, it is not surprising that, within this aggregation service, Reby provides the user with all available vehicles, both its own and those of the Operators, without this implying in any way that Reby offers false information about the vehicles it has¹ or that unsolicited data communication occurs.

5. When Reby informs about the number of motorcycles available to the user, specifically in the city of Barcelona, there are no breaches of data protection occurring in its application (which we do not understand what they would be). Simply put, Reby truthfully informs about the number of available vehicles regardless of the Operator, because the aggregation service is essentially that: the collaboration of different companies that make their vehicles available to citizens and decide to coexist in the same application.

[...]

7. As a consequence of the above, Reby has different privacy notices, internal protocols, and contracts that regulate its relationship both with its own users and with the users of the Operators, as well as its relationship with those Operators and with third parties, all of which is available to the AEPD if it deems it necessary.

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[...]

11. The data collected by Reby includes (i) the user's identification and contact information (name, surname, phone number, email); (ii) the driver's license and identification document (DNI or Passport), when it is essential to comply with traffic regulations; (iii) certain banking data to be able to charge for the service; and finally (iv) it requests access to the camera (not to the photo library), solely and exclusively to register the QR code of the vehicle to be used and to take a photograph at the end of the trip that allows verifying the correct parking of the vehicle. It goes without saying that the Reby application does not access the camera for any additional purpose and only does so with active behavior from the user when they use the application and Reby's services.

12. On the other hand, contrary to what the Claimant asserts, Reby does not share personal data for which it is the data controller with the Operators, nor with any other third company. During the provision of the aggregation service, the personal data of Reby users does not leave Reby's control, just as the personal data of the users of other Operators does not leave their control. That is to say, Reby is merely a data processor regarding the personal data for which the Operators are responsible and does not acquire autonomy or decision-making power over them, so no communication of personal data occurs, according to the criteria of data protection regulations.

[...]

II. The decision made regarding this complaint.

[...]

27. In this regard, and without prejudice to what has been described so far regarding Reby's compliance with the GDPR and the LOPDGDD, the company has reanalyzed its internal processes and legal texts to identify aspects that could be improved. As a result of this analysis, it has been concluded that Reby complies with data protection regulations, although certain aspects have been identified for improvement, which have already been implemented and are detailed in section V of this document.

[...]

IV. Report on the causes that led to the incident that originated the complaint.

[...]

31. Furthermore, we find it relevant to highlight that Reby has never received any complaint from any user related to the facts that have motivated this Complaint, nor with any other potential breach of its

obligations as a data controller or processor, simply and plainly.

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because the processing of personal data carried out by Reby complies with the GDPR and the LOPDGDD.

V. Report on the measures taken to prevent similar incidents, implementation dates, and controls carried out to verify their effectiveness.

33. As highlighted in the previous section IV, in this case, there has been no incident, so no personal data has been affected and, therefore, no measures in this regard have been able to be adopted.

34. However, once again highlighting Reby's awareness of compliance with data protection regulations, the company has reviewed and updated the following documents:

- Privacy Policy for users, provided as Document No. 2;
- Terms & Conditions of the aggregation service, provided as Document No. 3;
- [...]"

Along with the written submission, the following documentation is provided, among others:

- Copy of the "Data Processing Agreement" model that REBY (data processor) signs with the corresponding entity (data controller).
- Copy of the Privacy Policy in its version of 26/05/2021. The content of this document highlights:
"1. Information related to the mobility service

1.1. Data Controller

The data controller of the data of the interested party is Reby Rides, S.L. ("REBY"), with NIF number B-67301473. The contact details for REBY are as follows:

- Postal address: Av. Diagonal, 444, 6th, 08037, Barcelona.
- Email: support@reby.co

The interested party is informed that REBY has appointed a Data Protection Officer (DPO) to whom they can raise any issues related to the processing of their personal data. The interested party can contact the DPO through the following contact details:

- Postal address: Plaza Josep Pla i Casadevall, 20, 17001, Girona
- Phone: 902 107 741
- Email: dpo@anima-lopd.com

1.5. To whom can we communicate the data?

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The personal data of the interested party may be transferred to the following recipients:

- Companies of the REBY Group located within the European Economic Area, for administrative purposes within the REBY Group.
- Public Administrations when established by applicable legal provisions, particularly traffic authorities for the purpose of identifying the driver in case of an infringement and Courts and Tribunals when necessary or mandatory.
- Insurance entities and other related companies when necessary to process a claim.
- Providers that offer services to REBY related to the management of the formalized contract and that are considered data processors.

In any case, the third parties with whom certain personal data of the interested party is shared must have previously demonstrated the adoption of adequate measures for the proper protection of such data.

- Mobility operators with whom REBY has signed a collaboration agreement, when consent has been

obtained.

- Payment entities: User payments will be securely managed through the entity Kernel Labs, S.L.U, located at Av. Meridiana, 89, Floor 4, CP 08026 Barcelona, Identification ES867169961. Under no circumstances will they use the personal data of Users for their own purposes or for purposes other than the management of payments entrusted by Reby, which has a data processing agreement signed with this entity for this purpose.

1.7. How do we obtain the data?

The personal data we process comes from the interested party themselves through their registration in the App and the use of our services. The categories of data processed are as follows:

- Identification data (full name, ID card or passport),
- Driver's license
- Email address
- Phone
- Economic data or Token (partial data of the payment method provided by the User)
- Location

Additionally, during the provision of the mobility service, REBY may collect data generated during the use of said service. For the purposes described above, REBY does not process specially protected data.

2. Information related to the aggregation service

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In addition to the mobility service, REBY provides an aggregation service for other mobility operators, solely for the purpose of facilitating mobility in a quick and easy manner for all users in the cities where we operate ("Mobility Aggregation Service"). For more information about the Mobility Aggregation Service, you can refer to our Terms and Conditions.

For data protection purposes, REBY acts as the data processor regarding the data of third-party operators that have contracted its aggregation service and manages the user account for the maintenance of the contractual relationship, including vehicle reservations and trip management, possible changes to the account, historical travel records, payment for the service, etc.

In the event that the user chooses to contract a mobility service from a third operator through REBY's Mobility Aggregation Service, they will have the option to allow REBY to communicate the registration data it holds, as described in section 1.7, to the third operator that, if applicable, acts as the data controller, to facilitate the registration process with them.

Below, we provide the names of the mobility operators to which we provide our aggregation service, along with a link to the terms and conditions and privacy policies applicable to their users:

Tucycle Bikesharing, S.L. Terms and Conditions Privacy Policy

Oiz Ridesharing, S.L. Terms and Conditions Privacy Policy

Avant Fullstep, S.L. Terms and Conditions Privacy Policy

Eco-lógica Turismo Sostenible S.L. Terms and Conditions Privacy Policy.

THIRD: On 26/05/2023, a document was submitted to this Agency by A.A.A. (hereinafter, the claimant) through which a complaint is made against REBY RIDES, S.L. with NIF B67301473 (hereinafter, REBY), for a possible breach of the provisions of personal data protection regulations.

The reasons on which the complaint is based are as follows:

"The initiation of my registration as a user of OIZ BIKESHARING SL (OIZ) occurred in October 2020.

Upon registering, I provided my personal data as well as a photograph of my ID, driver's license, a selfie, and banking information. Subsequently, I accepted their privacy policy.

Once registered, I was able to observe in their privacy policy that in the section on data transfer, the clause stated verbatim: "The personal data of the user may be transferred to the following recipients:

Entities of the OIZ Group or that may become members of the group in the future (understood as a group of companies in accordance with the provisions of Article 42 of the Commercial Code), or to any

third party that acquires all or a substantial part of the assets of OIZ, for the purposes of management and administration of the Group primarily.”

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Given this, upon reading such opaque and non-transparent information, I decided to contact Customer Service to ask to whom they were transferring my data (attached Doc 1 the conversation) and it took them 14 days to provide me with the response I had been requesting from day one. I finally learned that my data had been transferred to: Ecológica Turismo Sostenible, S.L. (IBERSCOT), Avant Fullstep, S.L., Reby Rides, S.L. (hereinafter REBY), and TUCYCLE BIKE SHARING, S.L., with NIF B52553385 (hereinafter TUCYCLE).

I accessed all their privacy policies (attached as Doc 2) and none of them indicated at any time who the recipients of the transfer were.

[...]

Currently, (...) and REBY still do not indicate to whom they transfer their data (...).

[...]

Along with the complaint, the following documentation is provided, among others:

- Screenshots of the conversation that the claimant had with the “Customer Service” department of the OIZ application throughout October 2020; after having requested information about the entities to which their personal data was transferred. From the responses provided by OIZ, we highlight the following:

“... We are several companies that work together, provide the same service, and collaborate with each other for the benefit of the customer. In case customer information is shared from one company to another, we will always ask for your authorization and consent to do so... The data is never transferred to any company that the user has not given their consent to...”

“The companies are as follows: Reby, OIZ, Iberscot, Tucycle, and Avant.”

“It is a collaboration to offer a more convenient service; so that if you download the app of any of these companies, you no longer need to validate your information in each of them.”

- A copy of the section related to data transfer from the Privacy Policies of the transferring entities. The content of REBY's policy (reby.com) is as follows:

“To whom can we communicate the data?”

The personal data of the interested party may be transferred to the following recipients:

- Reby Inc and the rest of the companies in the REBY Group.
- Public administrations and authorities when established by an applicable legal provision.

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- Courts, tribunals, or local authorities when necessary, supported by a legitimate purpose.
- Providers that offer services to REBY related to the management of the formalized contract and that qualify as data processors. In any case, third parties with whom certain personal data of the interested party are shared must have previously demonstrated the adoption of appropriate measures for the proper protection of such data.
- Payment entities: User payments will be securely managed through the entity EASY PAYMENT AND FINANCE, E.P., S.A., a payment entity authorized by the Bank of Spain with number 6849. Established in accordance with Spanish legislation with NIF (...) and registered in the Madrid Mercantile Registry (...).

FOURTH: On 18/06/2021, this Agency accessed the Privacy Policy of REBY, available at the web address <https://www.reby.co/pp>. The following points are noteworthy from the content of this

document:

"1. Information related to the mobility service.

1.5. To whom can we communicate the data?

The personal data of the interested party may be transferred to the following recipients:

- Companies of the REBY Group located within the European Economic Area, for administrative purposes (...).
- Public Administrations when established by an applicable legal provision, particularly traffic authorities for purposes of (...).
- Insurance entities and other related companies (...).
- Providers that offer services to REBY related to management (...).
- Mobility operators with whom REBY has signed a collaboration agreement, when consent has been obtained.
- Payment entities (...).

1.7. How do we obtain the data?

The personal data we process comes from the interested party themselves through their registration in the App and the use of our services. The categories of data processed are as follows:

- Identification data (full name, ID card or passport)
- Driver's license. Email address. Phone number.
- Economic data or Token (...)
- Location.

Additionally, during the provision of the REBY mobility service, data generated during the use of said service may be collected. For the purposes described above, REBY does not process specially protected data.

2. Information related to the aggregation service.

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In addition to the mobility service, REBY provides an aggregation service for other mobility operators, solely to facilitate mobility in a quick and easy manner for all users in the cities where we operate ("Mobility Aggregation Service")...

For data protection purposes, REBY acts as a data processor regarding the data of third-party operators that have contracted its aggregation service and manages the user account to maintain the contractual relationship, including vehicle reservations and trip management, possible changes to the account, historical travel records, payment for the service, etc.

In the event that the user chooses to contract a mobility service from a third-party operator through REBY's Mobility Aggregation Service, they will have the option to allow REBY to communicate the registration data it holds, as described in section 1.7, to the third-party operator that, as applicable, acts as the data controller, to facilitate the registration process with them. Below is the name of the mobility operators to whom we provide our aggregation service, along with a link to the terms and conditions and privacy policies applicable to their users:

Tucycle Bikessharing, S.L., Oiz Ridesharing, S.L., Avant Fullstep, S.L., and Eco-lógica Turismo Sostenible S.L."

FIFTH: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter LOPDGDD), on 05/07/2021, this complaint was forwarded to REBY for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was recorded on 06/07/2021 as noted in the acknowledgment of receipt in the file.

On 06/08/2021, a response letter was received by this Agency stating, in summary, the following:

"[...]

1. Prior to presenting the decision and/or measures adopted by REBY, in its capacity as the data controller of the personal data of users of its services and as the data processor of the personal data of users of the mobility companies (the "Operators") mentioned in the Requirement, it is relevant to make certain clarifications.

[...]

B. Instrumentalization of data protection.

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[...]

7. Evidence of the above is that, although the Claim is directed at Reby, throughout the document, the Claimant does not provide a single screenshot related to the registration or login process on the Company's platform and only shows the registration process of the various applications of the Operators, which, as will be explained later, are independent companies and have no corporate link with Reby. (...)

9. (...) In this regard, Reby, in its capacity as the data processor for the Operators, does not have the capacity and/or legitimacy to respond to the accusations regarding: the privacy policies of the Operators, including their content or modifications; the functioning of the customer service system of the Operators; and/or the data processing activities carried out by them.

10. Furthermore, we are surprised that the Claimant files a Claim against Reby without demonstrating that they are a user of our platform, indicating only that the registration process for Reby's service is "somewhat different" from that of the Operators and without having previously approached us to express their alleged concern or confusion regarding our privacy policies, which, as will be demonstrated below, have been recently reviewed and comply scrupulously with data protection regulations. (...)

C. Explanation of how Reby operates.

12. Reby is a mobility company that independently manages its vehicles, users, routes, and internal processes as the data controller. Additionally, it has developed an aggregation service and a platform as a service (Platform-as-a-Service), contracted by different operators in the same territory, through which Reby provides them with certain services, solely and exclusively as a data processor.

[...]

14. The aggregation platform provides the user with technical information about the location, battery, and other aspects of the available vehicles from Reby and the Operators, allowing users to make payments through an external platform. (...)

15. As a result of the above, Reby has different privacy notices, internal protocols, and contracts that regulate its relationship both with its own users and with the users of the Operators, as well as its relationship with those Operators and with third parties.

16. For these purposes, given that compliance with data protection regulations is a dynamic process, which requires periodic analysis of internal processes to ensure that there have been no substantial changes requiring different analysis and measures, Reby updated its legal texts on May 26, 2021, (...)

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17. On the other hand, contrary to what the Claimant alleges, Reby does not share personal data for which it is responsible for processing with the Operators, nor with any other company, without a legitimate basis and, in any case, complying with the principle of transparency, as well as the duty of information established in Article 13 of the GDPR. In this regard, Reby duly informs users about the

processing of their data, in the following terms:

"Who can we communicate the data to?"

Mobility Operators with whom REBY has entered into a collaboration agreement, when consent has been obtained." [...] "In the event that the user chooses to contract a mobility service from a third operator through REBY's Mobility Aggregation Service, they will have the option to allow REBY to communicate the registration data it holds, as described in section 1.7, to the third operator who, if applicable, acts as the data controller, to facilitate the registration process with them. Below, we provide the names of the mobility operators to whom we provide our aggregation service, along with a link to the terms and conditions and privacy policies applicable to their users: Tucycle Bikesharing, S.L. - Terms and Conditions - Privacy Policy Oiz Ridesharing, S.L. - Terms and Conditions - Privacy Policy Avant Fullstep, S.L. - Terms and Conditions - Privacy Policy Eco-lógica Turismo Sostenible S.L. - Terms and Conditions - Privacy Policy.

[...]

20. Therefore, the operation of the payment system is as follows:

[...]

[...]

(i) It is not true that Reby violates the principle of transparency and/or the duty of information, established in the GDPR, as all data processing carried out by the Company, including data communications to third companies, is duly reflected in the privacy policy, as mentioned in paragraph number 16.

(ii) Reby does not carry out communications or transfers of data without a legitimate basis. In this regard, Reby only shares data with third companies when it is duly justified by contractual necessity or, otherwise, if users have given their express consent.

(iii) Reby does not share data related to the payments and balances of its users. This has been duly evidenced in paragraph 20 and the following, which detail how such data is associated with a unique identifier generated by Kernel and is not stored on the servers of Reby or the Operators, but is exchanged between Kernel and the user, travels encrypted, and is decrypted within the app itself, being displayed only in the client's graphical interface.

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[...]"

Along with the document, the following documentation is provided:

- Copy of the Privacy Policy in its version of 26/05/2021. Its content matches that mentioned in the second point of the "Facts" section.

SIXTH: On 06/10/2021, in accordance with Article 65 of the LOPDGDD, the claim submitted by the claiming party was admitted for processing.

SEVENTH: The General Subdirectorate for Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to the supervisory authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions established in Title VII, Chapter I, Section Two, of the LOPDGDD, being aware of the following points:

1) By means of a diligence carried out by this Agency on 01/03/2022, the user registration process in the REBY mobile application was verified up to the step that requests the credit card.

2) On 14/03/2022, this Agency received the response prepared by REBY to the information request dated 28/02/2022:

- Regarding general issues, it states:

1. That REBY is a mobility company that, for the provision of its Services, independently manages its vehicles, users, routes, and internal processes as the data controller. Additionally, it has developed an

aggregation service contracted by different Operators in the same territory, through which it also provides services solely and exclusively as the data processor.

2. That it cannot provide evidence from previous versions of the application due to technical impossibility as the infrastructure has changed and due to the technology on which these applications are based.

3. That they update the mobile application every two or three weeks and only store the last three or four versions of their App.

4. That the companies of the REBY group that have access to the personal data of REBY users, for strictly administrative and management purposes, are exclusively REBY GLOBAL S.L., RODEA ELECTRIC VEHICLES, S.L., REBY ITALIA S.R.L. All of them located within the EEA. That the internal processes of REBY are designed to prevent transfers and access to data by REBY INC., a company located outside the EEA.

- Regarding the processing of personal data of users, it states:

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1.

Provide a copy of the Record of Treatment Activities in the capacity of Data Controller in its versions from December 2019, November 2020, and March 2022, and as Data Processor (aggregation service) in the versions from 2020 and 2022.

In these last two versions, when REBY acts as Data Processor, the details “Operators of the aggregation service” and “Users of the aggregation service” indicate the following:

“Responsible Entities:

Tucycle Bike Sharing S.L. (TUCYCLE) C/ Guillermo Marconi, 296, Polígono de Roces, 33212, (Gijón) info@tucycle.com

OIZ Bikes sharing S.L. (OIZ) C/San Vicente 5, Bilbao, 48001, (Bizkaia) hola@oizbike.com

Avant Fullsteo S.L. (AVANT) Passeig de Gràcia 118 Plta. Principal 08002 (Barcelona) support@avant.fun

Ecologica Turismo Sostenible S.L. (IBERSCOT) Paseo Da Lagoa 10, Planta 0, Oleiros, 150177 (A Coruña) help@iberscot.net.”

•

Regarding the Privacy Policy and Terms of use of the app:

o

Provide a copy of the different versions of its Privacy Policy dated 27/08/2020, 02/11/2020, 26/05/2021, 07/09/2021, 20/12/2021, and 28/02/2022.

1.

The version dated 27/08/2020 includes the following section regarding the communication of personal data and obtaining the same:

“What recipients can we communicate the data to?

The personal data of the interested party may be transferred to the following recipients:

- REBY Inc. or Companies of the REBY Group.

- Public Administrations when established by an applicable legal provision (...).

- Providers that provide services to REBY related to the management of the formalized contract and that are considered Data Processors (...).

- Payment entities (...).”

“How do we obtain the data?

The personal data we process comes from the interested party through their Registration in the App and the Use of its services.

The categories of data processed are as follows: identification data, ID/passport, email address, phone number, economic data, location.”

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2.

In the version dated 26/05/2021, the sections corresponding to the communication of data to third parties and the obtaining of the same include the following:

“What recipients can we communicate the data to?

[...]

Insurance entities and other related companies when necessary to process a claim.

Mobility operators with which REBY has signed a collaboration agreement, when consent has been obtained.

“How do we obtain the data?

Likewise, during the provision of the mobility service, REBY may collect data generated during the use of said service.”

Additionally, the section “Information related to the aggregation service” is included, stating the following:

“In addition to the mobility service, REBY provides an aggregation service for other mobility operators, with the sole purpose of facilitating mobility in a quick and easy manner for all users in the cities where we operate (“Mobility Aggregation Service”). For more information about the Mobility Aggregation Service, you can refer to our Terms and Conditions.

For data protection purposes, REBY acts as Data Processor regarding the data of third operators that have contracted its aggregation service and manages the user account for maintaining the contractual relationship, including vehicle reservations and management of trips, possible changes to the account, historical travel records, payment for the service, etc.

In the event that the user chooses to contract a mobility service from a third operator through REBY's Mobility Aggregation Service, they will have the option to allow REBY to communicate the registration data it holds, as described in section 1.7, to the third operator who, if applicable, acts as Data Controller, to facilitate the registration process with them.

Below, we provide the names of the mobility operators to whom we provide our aggregation service, along with a link to the terms and conditions and privacy policies applicable to their users: Tucycle Bikes sharing, S.L. (...), Oiz Ridesharing, S.L. (...), Avant Fullstep, S.L. (...), Eco-lógica Turismo Sostenible S.L. (...).”

3.

The sections corresponding to the origin of personal data and the communication of data to third parties from the versions dated 07/09/2021 and

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12/20/2021 corresponds to the information mentioned in the previous point. However, in the latest version dated 02/28/2022, the following is included:

“What recipients can we communicate the data to?

[...]

When the data subject uses REBY's services as an employee of our corporate clients, the data linked to the use of the vehicles (details of the route taken and associated costs) may be communicated to and accessed by the corporate client of which the data subject is an employee, in accordance with the contract entered into between REBY and the corporate client in the interest of the data subject.”

o

Different versions of the Terms and Conditions dated 06/29/2020, 11/02/2020, 01/07/2021, 04/27/2021, 05/26/2021, and 02/28/2022 are provided.

□

Regarding the operation of the REBY APP:

1.
REBY states that it cannot carry out the test requested by this Agency in the version of the APP that was used on 12/01/2020 due to technical impossibility, as the application programming interface (API) is outdated and no longer maintained.

2.
Regarding the current application, it informs that registration in the REBY APP can only be done through it, not through third-party applications; acting solely as the data processor for the data collected through the Operators' applications.

o
The process of registering a new user

1.
On the first screen of the registration process, where the phone number is entered, there is a single "Accept" box with the following text: "Reby Rides, SL is responsible for the personal data you provide us to offer you our mobility service. To know how to exercise your data protection rights and obtain all the information about the processing we carry out, you can contact us. I have read and accept the Terms and Conditions and the Privacy Policy."

2.
After entering the confirmation code sent via SMS and the email address, a screen appears with two boxes, "Deny" and "Allow," with the following question: "Allow Reby to access the location of this device?"

3.
After completing the initial phase of registration, a descriptive field of consent ("consent_from_reby") is created in the database, which appears empty. REBY clarifies that the legitimizing basis for the use of the APP is the maintenance, development, and execution of the contractual relationship, so that section does not correspond to any actual consent.

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4.
To be able to drive a vehicle, a verified payment method is required, the data of which is incorporated into the database in the section "payment_processor__token." In case of wanting to drive motorcycles or, in certain areas, also scooters/bicycles, the data related to the driver's license and ID must be entered.

o
Data sharing with other Operators:

1.
Screenshots of a test with the current version of the REBY app are provided regarding the process followed by the same previous user to drive vehicles from other operators, in this case, IBERSCOT. There is a notice with the following text: "This is the first time you want to drive a vehicle from Iberscot. This vehicle is not from Reby, but from Iberscot. If you continue, you accept their Terms and Conditions and their Privacy Policy." Additionally, there is a box that is not selected by default that states: "I give my consent for the sharing of my personal data with Iberscot to facilitate the registration process, as described in our privacy policy." It is noted in the provided screenshots that when consent is selected, the "Accept" button is activated.

2.
A screenshot of the REBY system is provided after not granting consent for the data transfer, in which it is observed that in the "company" field it states "Reby," in the "consent_from_reby" field the value is "true," and in the "created_at" field, the date and time of the action execution is recorded as shown on

the mobile terminal used. Furthermore, REBY states that in this case, the “consent_from_reby” field: “true” means that consent has been granted from the REBY app.

3.

A screenshot of the REBY system granting consent for the data transfer is provided, in which it is observed that in the “company” field it states “IberScot” and the “payment_processor__token” field appears empty. In this regard, REBY states that the user would have to re-enter the payment method in the Operator's own app.

4.

REBY states that it only shares the strictly necessary data related to the Aggregation Service (phone number, email address, and valid verification of identity documents and driver's license) and that it only provides this information once, when the user gives their consent. Therefore, if any personal data changes, the information is not transferred again to the Operator. Furthermore, even if the user registers in an Operator's application after having used the Reby App and having given consent for the communication of data to that Operator, the user would have to complete the registration entirely, being completely independent of the user's account in the Reby App regarding that Operator and the user's account in the Operator's own application.

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Consents granted or not granted by real users from

19/08/2020 to the present.

1.

Screenshots of the REBY database of real users registered between 19/08/2020 and 10/03/2022 are provided. This sample includes a descriptive field (“migration_consent_date”) indicating whether consent has been granted or not and, if so, when.

REBY states that the following values may appear in that field:

o

Consent from app company pre-migration: used to identify users of the Reby Aggregation Service who granted consent through the applications of the Operators before the update of the Reby App in August 2021.

o

Consent from app Reby pre-migration: used to identify users of the Reby Aggregation Service who granted consent through their App before its update in August 2021.

o

Consent from app Reby post-migration: used to identify users of the Reby Aggregation Service who granted consent through their App after its update in August 2021.

□

Regarding the data processing agreements:

1.

Copies of the data processing agreements signed by REBY (data processor) with the following Operators (data controllers) are provided:

a.

ECO-LÓGICA TURISMO SOSTENIBLE, S.L. (signed on 17/02/2020).

b.

TUCYCLE BIKE SHARING, S.L. (signed on 18/02/2020).

c.

OIZ RIDESHARING, S.L. (signed on 27/02/2020).

d.

AVANT FULLSTEP, S.L. (signed on 03/03/2020).

All agreements stipulate that the data processor will perform the following services, among others: the provision of the platform and App service to the data controller and maintenance services for the Platform and the App.

4) By diligence carried out by this Agency on 18/03/2022, the Privacy Policy and User Agreement extracted on 22/02/2022 were verified. The version of the Privacy Policy remains that of 26/05/2021, the content of which is summarized above; while the User Agreement has been updated on 26/05/2021.

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5) By diligence carried out by this Agency on 26/04/2022, the Privacy Policy and Terms of Service of REBY extracted on 22/02/2022 from web.archive.org saved on 18/01/2021 were verified.

6) On 06/05/2022, this Agency received the response prepared by REBY to a second information request dated 11/04/2022:

☐

Regarding general issues, it states:

1.

That REBY, for the provision of the mobility aggregation service, manages through its app the different routes that users request, both through its own vehicles (as data controller) and those of third-party operators (as data processor).

☐

Regarding the functioning of the REBY APP:

o

Data sharing with other Operators:

1.

REBY states that the import of data between mobility operators to expedite the registration process began on 04/08/2020 and ended on 16/08/2021. From its app, only personal data has been shared for the use of the mobility aggregation service (traveling with a vehicle owned by another operator), which began to be provided in November 2020 and continues to this day.

2.

From the information provided by REBY, the following points are extracted:

BEFORE 16/08/2021

AFTER 16/08/2021

There is a single user profile that was given access to the rest of the operators based on the consents granted.

Each user is unique and independent in each operator.

In the field "app_company_name" the name of the operator to whom the user's data is transferred is indicated.

It provides screenshots of the REBY system.

In the field "app_company_name" appears "Reby," because consent is only obtained from the user through its app. Only the field "vehicle_company" varies depending on the operator selected by the user in the REBY app.

Consent can be granted at 2 moments:

- Registration in the operator's app: during the registration process in any app of the mobility operators (Oiz, Avant, Tucycle, or Iberscot), as data controllers. It is verified whether they are registered in a collaborating app and, if so, the data is imported.

Consent can only be granted through the REBY app at the moment of using the mobility aggregation service.

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- REBY App: when the user selects a vehicle from another operator. If they were already registered in the app of the operator in question, they were not required to register again.

In the app, there is a check box with the following text: "You are about to use the vehicle! The last step is to allow us to share your data with Tucycle to register you for their service and enable you to drive. It's that easy!"

There is an unchecked box to accept, with the text "I accept the Terms and Conditions and the Privacy Policy." Further down, there is a button "Register me."

In the app, there is a check box that states: "Hello! The vehicle you are going to use is not from Reby, but from [*]. If you continue, you are accepting their Terms and Conditions and their Privacy Policy."

There is an unchecked box to mark, with the text "I consent to the communication of my personal data to [*] to facilitate the registration process, as described in our Privacy Policy." And there is a button "Accept."

The following data is shared: name and surname, mobile phone number, email address, ID/passport, driving license, and payment token.

The following data is shared: name and surname, mobile phone number, email address, ID/passport, and driving license.

3. In relation to the security measures that were implemented as the data processor for other operators, to prevent a mobility operator (including REBY as the data controller) from consulting the database, but without accessing data from other operators; REBY informs as follows:

"The security of the Reby application is based on an OAuth-type authorization system. All the "https" calls made by the application to the server include an "Authorization" header with a JWT token issued and signed by the server. The security measures have undergone minor evolutions over time, but essentially those applied before August 16, 2021, and those currently applied are similar. For example, it can be highlighted that initially, a token with a proprietary format was used, and with the latest version of the app, we switched to using JWT tokens as explained below.

JWT tokens follow the RFC 7519 specification: (**URL.1) The tokens contain the session identifier for that specific user on the Reby domain. They are signed by the OAuth server, so that the Reby backend can check a manipulated token and immediately discard the request.

For added security, each user session maintains two tokens. One short-lived (a few hours) that we call the access token and another long-lived (about 30 days), which we call the refresh token. The refresh tokens are used to obtain fresh access tokens before they expire.

expire. The detailed process is as follows: The user logs in by identifying themselves in Reby with their mobile device and an SMS received through the telecommunications operator. The server creates a new session for the user and issues two signed tokens, an access token and a refresh token. Both tokens contain a reference to the user's session. All subsequent requests to the API must be accompanied by the access token. The server automatically verifies the signature of the token. If it is correct, the user's identifier in Reby is injected into the context of the request. If the token's signature is incorrect, the request is automatically rejected. The controller handling the request uses the user identifier in Reby automatically injected into the context for any database queries that need to access the user's data.

The context mechanism is built on the native "context" library of the Go programming language. (**URL.2). Therefore, we have absolute confidence that the contexts are perfectly isolated between different API calls. Thus, it is guaranteed that information related to a user in Reby does not mix with information of the same or another user in another company. When a person in Reby requests to view

their travel history or payment history, for example, the information returned is related to the session identifier linked in their JWT token, which intrinsically contains the identifier of the user and company for which information is requested.”

o

Consents granted to date:

1. REBY confirms the aforementioned regarding the consents and the values “app company pre-migration,” “app Reby pre-migration,” and “app Reby post-migration.” In this regard, it provides a table with 27,080 records containing the following fields:

a. “from_co_cu_id”: unique identifier of the user granting consent.

b. “consent_timestamp”: date and time of consent. Takes values from dates between June 2020 and 16/06/2021.

c. “company_name”: operator to whom consent is granted to share user data from the REBY app. Takes values AVANT, TUCYCLE, OIZ, IBERSCOT.

d. “consent_from”: constant value “consent from app company pre-migration.”

2. REBY indicates that the term “null” in the field “migration_consent_date” refers to the user not consenting to the transfer of their data or that they have only used the app of the operator in which they are registered.

3) As of 30/06/2022, a diligence performed by this Agency on 22/02/2022 related to the queries of the URL ***URL.3; and the DPD of COOLTRA MOTOS, S.L. on the website of this AEPD is incorporated into the inspection proceedings.

EIGHTH: By Resolution dated 14/10/2022, the expiration of the previous investigation proceedings mentioned in point five of the section “Facts” was declared due to the passage of twelve months from the admission of the complaint without a sanctioning procedure initiation agreement being issued.

In the same resolution, it was also agreed to open new investigation proceedings and incorporate into these new proceedings the documentation that integrates the previous proceedings declared expired.

NINTH: In the new previous investigation proceedings agreed upon:

1) On 21/10/2022, a diligence performed by this Agency on 27/06/2022 is incorporated into the inspection proceedings, related to the Announcement of the Mayoral Decree (21/D/2019-2142), dated 10/10/2019, which calls for the procedure for granting temporary licenses for the special common use of public domain for the parking of bicycles, mopeds, and motorcycles for shared use in an economic exploitation regime in the municipal term of Barcelona.

2) By diligence performed by this Agency on 27/02/2023, it is verified that, after attempting to register a user in the REBY app and entering the mobile number while accepting the conditions, the necessary SMS to continue with the registration process is not received. Screenshots are provided.

3) On 01/03/2023, this Agency receives a letter from REBY in which, in summary, it states the following:

“[...]

That, in order to prove the pre-insolvency situation of REBY, we come to provide as DOC. 1, Order dated 22 February 2023 from the Commercial Court No. XX of Barcelona, where it is recorded that on 23 December 2022, REBY RIDES, S.L. submitted a document informing this judicial body of the opening of negotiations with creditors.

That, although it was communicated to the inspector of this control authority that the bankruptcy petition would be presented imminently in the current week, we regret to inform that details associated with the financial documentation are still being finalized and it has not been completed.

[...]

4) On 7 and 08/03/2023, an inspection of REBY takes place at the premises of this Agency. The legal representatives of the entity made the following statements, which are recorded in the respective Inspection Act, which was signed by all participants:

“2.1.

That they provide the entire technological platform, including the development of the mobile APP and the associated database, to the operators ECO-LÓGICA TURISMO SOSTENIBLE, S.L. (hereinafter IBERSCOT), OIZ RIDESHARING, S.L. (hereinafter OIZ), TUCYCLE BIKESHARING, S.L. (hereinafter

TUCYCLE), and AVANT FULLSTEP,
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S.L. (hereinafter AVANT) which provides a mobility service in the city of Barcelona.

(...).

2.2.

Regarding whether the operators IBERSCOT, OIZ, TUCYCLE, AVANT continue to provide service, they state that they no longer provide service since February 16, 2023.

2.3.

(...).

2.4.

Currently, REBY has completely ceased its activity.

2.5.

In relation to the contracts for the service of the technological platform and APP, including the aggregation service provided by REBY to the operators, they provide these contracts, which are attached to this Act as Doc 3.

2.6.

They are not aware of any collaboration contracts between the operators in the context of the service provided by REBY.

2.7.

There is only one data processing assignment contract by REBY, which they have already provided to the Agency previously.

Regarding the access of the operators to the database and associated query tools, they state:

2.8.

REBY only provided each operator with reports containing aggregated or statistical data on the usage of the fleet of the respective operator. They cannot provide any request from the operators regarding those reports.

2.9.

(...).

2.10.

The respective operators did have direct access to the database query tools (...). However, through these tools, they only had access to their own users.

2.11.

(...).

[...]

Regarding the sharing of data among all operators:

2.14.

All tables in the database are common to all operators.

2.15.

The person accessing the data in REBY as a service provider to the operators is the same person accessing it on behalf of REBY providing its services as an independent operator.

2.16.

Prior to August 2021, there was only 1 record in the database for each user. All operators accessed this single record, but only once the user had given permission in the APP of each operator.

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2.17.

Subsequent to August 2021, there was 1 record in the database for each user and for each operator in which the user was registered. During the migration, the unique records per user that existed previously had to be forcibly replicated as many times as there were operators in which the user had registered.

2.18.

In principle, and from the perspective of access permissions to the database, all APPs of all operators including REBY could access the complete database both before and after August 2021.

Regarding consent for the sharing of user data among the operators:

2.19.

Prior to August 2021, a user was not allowed to register unless they gave consent to check if their phone number had already been registered with any operator and, if so, to import their data to the operator they were registering with. The reason is that there was only one unique record per user in the database that all operators needed to access. A user is exclusively determined by the phone number with which they registered. In the software, it was not possible to define different users associated with the same phone number.

2.20.

Regarding the first screen of the operators' App where it states: "I consent that [OPERATOR] checks if I am already registered on other collaborative mobility platforms to facilitate the registration process."

That box had to be checked forcibly to continue with the registration process.

2.21.

Regarding the second screen of the operators' App where it states: "After checking, we have detected that you are already registered with [include name of Operator]. You accept that this communicates to Iberscot the following data to expedite the registration process, in order to provide you with our services: name, surname, email, ID/Driver's license/Passport, payment token. We remind you that you can exercise your rights as described in our Privacy Policy."

And there are two options; one with the text "Register again" and the other "Understood!"

By clicking on "Understood," consent was indeed registered. If "Register again" was clicked, it returned to the initial screen where the phone number is entered to receive an SMS.

2.22.

They do not remember how the process was for the case of the REBY App.

2.23.

Therefore, prior to August 2021, the five operators automatically shared all data of registered users, if they had previously given consent to import their data, as there was 1 unique record in the database.

2.24.

Prior to August 2021, the "importation" of data from other

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the operators was not such, but rather it was to allow access to the only existing record of that user in the database.

2.25. That, prior to August 2021, REBY also accessed the unique record of a user just as the other operators did. They are unaware of where the user consents for this access by REBY are located.

2.26. That, before August 2021, the apps of all operators, including REBY, functioned the same way, as they recall, that is, if a user wanted to register and was already registered with another operator, they always requested consent.

2.27. That before August 2021, when a user made use of the aggregation service, REBY did not transfer data of that user to the operator from which they wanted to drive the vehicle, assuming that the user was already registered with that operator. And that, in this case, REBY did not collect new consent. They cannot provide a screenshot of the REBY app with the user's interaction in this use case due to technical impossibility.

2.28. That, after August 2021, the option for “importing” user data when a user was registered with another operator was no longer available, so the user had to complete the entire registration process. That no operator requested consent from the user during their registration process, only REBY to provide the aggregation service. That where there are dates of consent after August 2021, it is because it actually refers to consents given from the REBY app for the use of the aggregation service.

2.29. That the only table they are aware of that stores consents is called (...). That the description of the fields in this table is:

id: unique identifier of the consent

timestamp: date of the consent and date on which the record is created.

origin_company_user_id: user who gives the consent (equivalent to their phone number)

destination_company_id: company to which consent is given to access the data.

type: they do not know its meaning and it always has the value 1.

2.30. That they do not know where the consents given from the REBY app are located.

[...]

During the indicated inspection, the Services of this Agency accessed the database that supports the mobility service provided by REBY as an operator, the mobility aggregation service provided by REBY, as well as the technological platform and mobile app with which the other operators operate. Through this access, it is verified:

1. That the total number of users is:

REBY

1,034,859

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IBERSCOT

13,023

OIZ

14,657

TUCYCLE

10,604

AVANT

15,557

2. That the data associated with a user registered after August 2021 with the different operators, excluding REBY, may vary, including the payment token and balance.

3. That there are consents in the consent table (...) for the operators TUCYCLE, AVANT, OIZ, IBERSCOT. It is verified that there are no records associated with REBY.

4. That the oldest consent date is 29/05/2020 08:44.

5. It is verified that:

a. For the operator AVANT, the first consent is dated 29/05/2020 and the last is dated 14/02/2023.

b. That the oldest consent given from IBERSCOT is dated 30/06/2020 and the most recent is dated 12/02/2023.

c. That the oldest consent given from OIZ is dated 30/06/2020 and the most recent is dated 12/02/2023.

d. That the oldest consent given from TUCYCLE is dated 30/06/2020 and the most recent is dated 13/02/2023.

6. That the way to know to which operators a given operator has transferred data, or even if they have transferred it or not, is with the following procedure:

For a specific user, it is necessary to search in the session table for the first sessions of that user for each operator, that is, when was the first time that user used the app of each operator. If the first session of all is from the operator in question, it is inferred that they must have “transferred” the data to

the other operators whose first session for that user is later. It is verified that the date of the first session in an operator coincides with the date of the consent given from that operator.

4) By diligence carried out by this Agency on 24/03/2023, the distances between different geographic coordinates are verified.

LEGAL GROUNDS

I

Competence and applicable regulations

In accordance with the functions conferred on each supervisory authority by Article 57.1 a), f) and h) of the GDPR and as provided in Articles 47 and 48.1 of the LOPDGDD,

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The Director of the Spanish Agency for Data Protection is competent to issue this resolution.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, to the extent that they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Possible infringements

This case is related to the technological platform REBY and the provision of bikesharing services offered by four other operators: AVANT, TUCYCLE, IBERSCOT, and OIZ.

Both in the letter dated 12/03/2021 sent by the CITY COUNCIL OF BARCELONA and in the complaint dated 26/05/2021 filed by A.A.A., it is highlighted that personal data is communicated without the consent of the users of the aforementioned companies who register in the corresponding mobile "apps" to access the vehicle rental service. It is noted that when a person registers in one of the "apps" of these entities and subsequently installs another one, the second recognizes the user and reuses the data provided by the other "collaborating platform," with the aim of "streamlining the process." Additionally, none of the entities clearly inform who the "collaborating platforms" are from which personal data may be shared.

In both cases, it was deemed appropriate to admit the letter from the City Council and the complaint for the necessary verifications regarding the information received from REBY. This led to the opening of preliminary investigation proceedings.

At this point, it is necessary to clarify the role under which the entities involved act, from the perspective of personal data protection.

The entities AVANT, TUCYCLE, IBERSCOT, and OIZ are the companies that were awarded the temporary licenses for special common use of public domain for the parking of mopeds and motorcycles for shared use under an economic exploitation regime in the municipal term of Barcelona, called by the CITY COUNCIL OF BARCELONA on 10/10/2019. Consequently, the entity REBY was not the beneficiary of this license.

In light of the documentation in the file, the Inspection Services verified that throughout the year 2020, REBY entered into service provision contracts with each of the aforementioned operators, which aim, among other things, to provide the service of the platform and App to the data controller and the maintenance services of the platform and the App. In any case, REBY acts in the events as a data processor.

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The figures of "data controller" and "data processor" are defined in Article 4 of the GDPR as follows:

“Data controller or controller: the natural or legal person, public authority, service, or other body that, alone or jointly with others, determines the purposes and means of the processing; if the law of the Union or of the Member States determines the purposes and means of the processing, the data controller or the specific criteria for its appointment may be established by the law of the Union or of the Member States.”

“Data processor or processor: the natural or legal person, public authority, service, or other body that processes personal data on behalf of the data controller.”

Article 24 of the GDPR, concerning the "Responsibility of the data controller," establishes the following:

“1. Taking into account the nature, scope, context, and purposes of the processing, as well as the risks of varying likelihood and severity for the rights and freedoms of natural persons, the data controller shall implement appropriate technical and organizational measures to ensure and be able to demonstrate that the processing is in compliance with this Regulation. Such measures shall be reviewed and updated as necessary.

2. Where appropriate in relation to the processing activities, the measures referred to in paragraph 1 shall include the implementation, by the data controller, of appropriate data protection policies...”

Report 0064/2020 from the Legal Office of this Agency has emphatically stated that “The GDPR has represented a paradigm shift in addressing the regulation of the right to the protection of personal data, which is now based on the principle of 'accountability' or 'proactive responsibility' as repeatedly pointed out by the AEPD (Report 17/2019, among many others) and is reflected in the Explanatory Memorandum of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (LOPDGDD).”

The aforementioned report continues as follows:

“...the criteria on how to attribute the different roles remain the same (paragraph 11), reiterates that these are functional concepts, aimed at assigning responsibilities according to the actual roles of the parties (paragraph 12), which implies that in most cases, attention must be paid to the circumstances of the specific case (case by case) considering their actual activities rather than the formal designation of an actor as 'controller' or 'processor' (for example, in a contract), as well as autonomous concepts, whose interpretation must be carried out under the European regulations on the protection of personal data (paragraph 13), and taking into account (paragraph 24) that the need for a factual assessment also means that the role of a data controller does not derive from the nature of an entity that is processing data but from its activities.”

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concrete in a specific context...”.

According to the above, the concepts of data controller and data processor are not formal, but functional, and must address the specific case.

On the other hand, the existence of a data processor depends on a decision made by the data controller, who may decide to carry out certain processing operations themselves or to contract all or part of the processing with a processor.

The essence of the data processor's function is that personal data is processed on behalf of and for the account of the data controller. In practice, it is the controller who determines the purpose and the means, at least the essential ones, while the data processor has the function of providing services to the data controllers. In other words, "acting on behalf of and for the account of the data controller" means that the data processor is at the service of the interests of the data controller in carrying out a specific task and, therefore, follows the instructions established by the controller, at least regarding the purpose and essential means of the entrusted processing.

The data controller is the one who has the obligation to ensure compliance with data protection regulations and the protection of the rights of the data subjects, as well as to be able to demonstrate it (Articles 5.2, 24, 28, and 32 of the GDPR).

The control of compliance with the law extends throughout the processing, from beginning to end. The

data controller must act, in any case, diligently, consciously, committedly, and actively.

This mandate from the legislator is independent of whether the processing is carried out directly by the data controller or whether it is performed using a data processor.

In the present case, it is the 4 operators (AVANT, OIZ, TUCYCLE, and IBERSCOT) who decide to contract REBY to provide its technological platform and thus offer an adequate bikesharing service; assuming the role of data processor, since it acts fully on behalf of and for the account of these, which are the entities responsible for the processing in all respects regarding data protection.

Furthermore, registering as a user from the REBY mobile app does not grant the role of data controller, as the terms of use and privacy policy that apply are those corresponding to the selected operator.

Thus, it is the operator in question, and not REBY, who determines the processing operations of the personal data that will be carried out, that is, the why (the purpose) and the how (the means) personal data should be processed to achieve the intended purpose. Evidence of this are the screenshots provided by REBY in which a checkbox indicates the following: "Hello! The vehicle you are going to use is not from Reby, but from [*]. If you continue, you are accepting their Terms and Conditions and their Privacy Policy."

In this sense, Article 28.10 of the GDPR also addresses the criterion of determining the purposes and means of processing when establishing the

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Responsibility of the data processor in the commission of infringements of the GDPR. According to this article, if the processor determines the purposes and means of the processing, they will be considered responsible for it: "10. Without prejudice to the provisions of Articles 82, 83, and 84, if a data processor infringes this Regulation by determining the purposes and means of the processing, they will be considered responsible for the processing concerning that processing."

As indicated, REBY acts as the data processor of the personal data of users, and any harm caused regarding the rights and freedoms of the affected data subjects must be attributed to the operators, as data controllers; without prejudice to what is provided in Article 28.10 of the GDPR.

Finally, it should be noted that there is no evidence of the processing of personal data of users of the services outside of those derived from the contractual relationship signed by REBY with the aforementioned operators.

Currently, REBY has completely ceased its activity, being in a pre-insolvency situation, and its mobile app does not allow for new registrations.

In light of the above, the proceedings should be archived, without prejudice to the Agency applying the investigative and corrective powers it holds, which may carry out subsequent actions related to the data processing referred to in the complaint.

Therefore, in accordance with the above, by the Director of the Spanish Agency for Data Protection, IT IS AGREED:

FIRST: TO ARCHIVE the present proceedings.

SECOND: TO NOTIFY this resolution to REBY RIDES, S.L., with NIF B67301473, to A.A.A., and to the CITY COUNCIL OF BARCELONA.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative

Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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